

DATA PROCESSING ADDENDUM

BY AND BETWEEN: ACME INVESTMENT ADVISERS

1. SCOPE AND PURPOSE

- 1.1. This Data Processing Addendum (“Addendum”) forms part of the Agreement between Acme Investment Advisers (the “Controller”) and the Service Provider (the “Processor”) regarding the processing of Personal Data.
- 1.2. The parties agree to comply with the following provisions with respect to any Personal Data processed under the Agreement.

2. DEFINITIONS

- 2.1. The terms “Personal Data”, “Processing”, “Controller”, and “Processor” shall have the meanings given to them in Applicable Data Protection Laws.
- 2.2. “Applicable Data Protection Laws” means all legislation and regulations applicable to the processing of Personal Data, including but not limited to the GDPR.

3. OBLIGATIONS OF THE PROCESSOR

- 3.1. The Processor agrees to process Personal Data only on documented instructions from the Controller, unless required to do so by Applicable Law.
- 3.2. The Processor shall ensure that persons authorized to process the Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.
- 3.3. The Processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk.